

# Cirqlback — Legal & Compliance Pack

**Status: DRAFTS for review. Not legal or tax advice.**

This folder contains starting-point legal and business documents for Cirqlback. They were prepared to industry norms to give you and your advisors a strong head start — but they are **drafts**, not finished legal instruments, and they are **not a substitute for advice from a licensed attorney and CPA in your jurisdiction**. Do not publish or sign any of them until a qualified professional has reviewed and adapted them to your entity, your state, and your actual practices.

**Governing law is intentionally left as placeholders. Every [BRACKETED] value must be filled in (see the checklist below) before these are used.**

## What's in this pack

| File                                                            | What it is                                                                             | Audience           |
|-----------------------------------------------------------------|----------------------------------------------------------------------------------------|--------------------|
| <a href="#">terms-of-service.md</a>                             | Terms of Service / Terms of Use for the whole platform                                 | All users          |
| <a href="#">privacy-policy.md</a>                               | Privacy Policy (data collected, taps, location, Stripe, cookies, CCPA/GDPR)            | All users          |
| <a href="#">merchant-agreement.md</a>                           | Business (Merchant) Subscriber Agreement — billing, add-ons, funded campaigns, payouts | Businesses         |
| <a href="#">coordinator-independent-contractor-agreement.md</a> | Community Coordinator Independent Contractor Agreement                                 | Coordinators       |
| <a href="#">coordinator-1099-guide.md</a>                       | Plain-English guide to operating as a 1099 independent contractor                      | Coordinators       |
| <a href="#">insurance-and-security-safeguards.md</a>            | Advisory memo: insurance coverages + cybersecurity safeguards                          | Owners / operators |
| <a href="#">faq.md</a>                                          | Public product & trust FAQ                                                             | All users          |

## Fill-in checklist (do this before use)

Replace these placeholders everywhere they appear (search across all files):

- [COMPANY LEGAL NAME] — the exact registered name (e.g., "Cirqlback LLC")
- [ENTITY TYPE] — LLC, corporation, etc.
- [STATE OF FORMATION] — where the entity is registered
- [GOVERNING LAW STATE] — the state whose law governs the agreements
- [VENUE COUNTY, STATE] — the courts/arbitration venue for disputes
- [BUSINESS ADDRESS] — registered business mailing address
- [LEGAL EMAIL] — e.g., legal@cirqlback.com (verify it's monitored)
- [PRIVACY EMAIL] — e.g., privacy@cirqlback.com
- [SUPPORT EMAIL] — e.g., support@cirqlback.com
- [EFFECTIVE DATE] — the date each document takes effect
- [REFUND WINDOW] — confirm the actual refund policy you'll honor
- [DATA RETENTION PERIOD] — confirm how long you keep records

## Who should review what (before you rely on any of it)

1. **Business attorney** (licensed in [GOVERNING LAW STATE] ) — Terms of Service, Privacy Policy, Merchant Agreement, Coordinator Contractor Agreement. Especially: limitation of liability, indemnity, arbitration/class-waiver enforceability, auto-renewal disclosure laws, and worker-classification language.
  2. **CPA / tax advisor** — coordinator 1099 issuance, sales-tax obligations on subscriptions/add-ons, nexus, and your own entity taxes.
  3. **Licensed insurance broker** — the coverages in the safeguards memo; get quotes for General Liability, Tech E&O / Professional Liability, and **Cyber Liability** at minimum.
  4. **A privacy specialist** if you knowingly serve California residents (CCPA/CPRA), EU/UK residents (GDPR/UK GDPR), or children under 13 (COPPA).
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## Highest-priority legal risks to raise with counsel

- **Worker classification.** Coordinators must be genuine independent contractors. Misclassification (treating a contractor like an employee) creates back-tax, penalty, and benefits liability. See the contractor agreement and 1099 guide. If you ever expand to California, Massachusetts, or New Jersey, the strict "**ABC test**" applies and this needs re-review.
  - **Payments & PCI.** You use Stripe, which keeps you largely out of direct card-data handling — but confirm you never store raw card numbers and that Stripe Connect payout terms are reflected in the Merchant Agreement.
  - **Auto-renewal laws.** Many states require clear pre-checkout disclosure and easy cancellation for auto-renewing subscriptions. Confirm your checkout meets them.
  - **Data/privacy law.** Even a small platform can trigger CCPA/CPRA or GDPR depending on who signs up. The Privacy Policy has sections for these — enable/adapt them to reality.
  - **Money movement between businesses.** Funded shared-campaign settlements and Stripe Connect payouts should be documented so you are a facilitator, not an unlicensed money transmitter — flag this specifically for counsel.
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*Prepared as drafts to accelerate professional review. © [COMPANY LEGAL NAME]. All rights reserved once finalized.*